

Court No. - 3

Case :- WRIT - C No. - 26512 of 2016

Petitioner :- M/S Ranjeeta Cold Storage & Ice Plant

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Prashant Kumar,J.

Heard learned counsel for the petitioner.

It is contended on behalf of the petitioner that power to provide protective load facility and schedule rostering is solely vested in the Electricity Regulatory Commission and the said powers can not be exercised by the Load Dispatch Centre constituted under Section 31 of the Electricity Act, 2003. It is further contended that in the absence of any contract with the licensee in respect of protective load, the petitioner is not liable to make any payment for consuming the electrical energy during the schedule rostering unless the schedule rostering is done by the Regulatory Commission as in absence of any rostering, petitioner would be entitled for continuous supply of electrical energy, in view of the agreement, subject to exceptions given in section 44 of the Electricity Act.

Prima facie the issues require scrutiny.

Shri Mahboob Ahmad, who has accepted notice on behalf of respondents no. 3,4, and 5, Shri Amrendra Nath Singh, appearing for the respondent No.2 Electricity Regulatory Commission and learned Standing Counsel appearing for respondent No.1 may file counter affidavit within six weeks.

Rejoinder affidavit, if any, may be filed by the petitioner within two weeks thereafter.

List on 25th July 2016.

Considering the facts and circumstances as an interim measure it is hereby directed that respondent shall not insist upon the petitioner to pay any additional charges towards protective load facility for the period the electrical energy has already been consumed by the petitioner. In so far as the future period is concerned licensee shall supply continuous electrical energy to the petitioner treating that he has opted for protective load facility and any surcharge paid by the petitioner towards protective load would be kept by the licensee in the separate interest bearing account and the same shall abide by result of the writ petition.

Order Date :- 30.5.2016

Atul kr. sri.

Court No. - 29

Case :- WRIT - C No. - 26512 of 2016

Petitioner :- M/S Ranjeeta Cold Storage & Ice Plant

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Mahboob Ahmad

Hon'ble Tarun Agarwala,J.

Hon'ble Vipin Sinha,J.

Counter affidavit filed today is taken on record.

Three weeks' time is allowed to the petitioner to file a rejoinder affidavit.

List thereafter.

Order Date :- 5.8.2016

AKJ

(Vipin Sinha,J.)

(Tarun Agarwala,J.)

Court No. - 29

Case :- WRIT - C No. - 26512 of 2016

Petitioner :- M/S Ranjeeta Cold Storage & Ice Plant

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Mahboob Ahmad

Hon'ble Tarun Agarwala,J.

Hon'ble Vipin Sinha,J.

The case is passed over on the illness slip of learned counsel for the respondent.

Order Date :- 31.8.2016

Anand

(Vipin Sinha, J.)

(Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 26512 of 2016

Petitioner :- M/S Ranjeeta Cold Storage & Ice Plant

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Mahboob
Ahmad

Hon'ble Tarun Agarwala,J.

Hon'ble Vipin Sinha,J.

The case is passed over on the illness slip of the learned counsel for the respondents.

Order Date :- 20.9.2016

YK

(Vipin Sinha, J.) (Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 26512 of 2016

Petitioner :- M/S Ranjeeta Cold Storage & Ice Plant

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Mahboob
Ahmad

Hon'ble Tarun Agarwala,J.

Hon'ble Vipin Sinha,J.

Continuous illness slip is being sent by the learned counsel for the respondent. Today also, he has sent an illness slip.

The case is passed over today.

List peremptorily in the next cause list.

Order Date :- 29.9.2016

YK

(Vipin Sinha, J.) (Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 26512 of 2016

Petitioner :- M/S Ranjeeta Cold Storage & Ice Plant

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Mahboob Ahmad

Hon'ble Tarun Agarwala,J.

Hon'ble Vipin Sinha,J.

Continuous illness slip was being sent by the learned counsel for the respondents. Today Sri A.N.Singh, the learned counsel for the respondents has also sent an illness slip on behalf of the U.P. Electricity Regulatory Commission. We also find that several opportunities were given to the learned counsel for the Commission to file a counter affidavit, which has not been done.

No further time is now being allowed to the Commission to file counter affidavit. Rejoinder affidavit to the counter affidavit filed by other respondents may be filed by the petitioner within two weeks.

List on 24.10.2016 peremptorily.

Order Date :- 7.10.2016

AKJ

(Vipin Sinha,J.) (Tarun Agarwala,J.)

Court No. - 39

Case :- WRIT - C No. - 26512 of 2016

Petitioner :- M/S Ranjeeta Cold Storage & Ice Plant

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Amrendra Nath Singh,Mahboob Ahmad

Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

Sri Bidhan Chandra Rai, learned counsel for the petitioner has sent his illness slip.

List on 13 April 2017.

Order Date :- 27.3.2017

Ashish Pd.

(Dilip Gupta, J.)

(Siddhartha Varma,J.)

Court No. - 21

Case :- WRIT - C No. - 26512 of 2016

Petitioner :- M/S Ranjeeta Cold Storage & Ice Plant

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Amrendra Nath Singh,Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Ajay Bhanot,J.

Cases of Mr. Mahboob Ahmad, learned counsel for the respondents are reported to be adjourned till today.

List again in the next cause list.

Order Date :- 3.1.2018

Sumaira

Court No. - 40

Case :- WRIT - C No. - 26512 of 2016

Petitioner :- M/S Ranjeeta Cold Storage & Ice Plant

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Amrendra Nath Singh,Mahboob Ahmad

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Sri Mahboob Ahmad, learned counsel for the respondent has sent an illness slip today.

List this case in the ***next cause list.***

Order Date :- 9.5.2018

S.Chaurasia

Court No. - 40

Case :- WRIT - C No. - 26512 of 2016

Petitioner :- M/S Ranjeeta Cold Storage & Ice Plant

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Amrendra Nath Singh,Mahboob Ahmad

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

It is stated that learned counsel for the petitioner is assisting a Full Bench at Lucknow and therefore the matter be adjourned today.

List in the next cause list.

Order Date :- 16.5.2018

Monika

Case :- WRIT - C No. - 26512 of 2016

Petitioner :- M/S Ranjeeta Cold Storage & Ice Plant

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Amrendra Nath Singh,Mahboob Ahmad

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Heard learned counsel for the petitioner.

The crux of the challenge in the present writ petition is that the respondent no. 4- Purvanchal Power Corporation through its agencies cannot raise the demand of additional charge for protective load, inasmuch as, the ingredients of Clause 4.27 of the UP Electricity Supply Code, 2005 are not fulfilled. Clause 4.27 is extracted *hereinunder:-*

"4.27 Protective Load- The Licensee may grant protective load in exceptional cases, to be specified in agreement to those consumers, who have opted for twenty four hours use of power, on the following terms and conditions:

(a) An additional charge as specified in the latest Rate Schedule (in the Tariff Order) shall be recovered each month through regular billing if any.

(b) The protective load may be subjected to any emergency rostering.

(c) The charges for protective load shall not count towards minimum charge for the main supply. (d) Protective load shall also be utilised for lights & fans and drinking water purposes.

(e) The consumer availing the facility of protective load shall, however, not be subjected to scheduled power cut imposed from time to time by the State Government or the Licensee. During the period of scheduled power cut, the protective load shall not exceed the sanctioned protective load.

(f) Protective load shall be sanctioned only to such consumers, who are given supply through an independent feeder at 11 KV and above emanating from a sub-station.

(g) Protective load shall not be released or continued to such consumer, against whom there are arrears towards the Licensee. The arrears, which are sub-judice before any competent court and have been stayed, shall not be treated as arrears.

(h) If it is brought to the notice of the SLDC / Licensee that a particular consumer is using electricity during the period he is not permitted to do so, exceeding the sanctioned protective load, the feeder supplying such a consumer shall be opened to de-energize it from the source sub-station."

Learned counsel for the petitioner has then invited the attention of the Court in the judgment of a learned Single Judge in the case of ***Executive Engineer Vs. Electricity Ombudsman*** reported in **2015 (2) ADJ 196** paragraph nos. 46 to 61 thereof to contend that since no scheduled rostering has been carried out under a valid order of the competent authority, therefore, the question of demand of additional charge merely on the ground that electricity was being supplied 24 hours to the petitioner cannot be raised.

Ancillary grounds have also be taken in the writ petition, namely, the absence of an agreement where any such charges for protective load can be realized with a further prayer that this cannot be applied

retrospectively as has been done under the impugned communication dated 23rd April 2016, inasmuch as, the protective load charges could not have been levied without the fulfilment of the statutory requirement of a notification by the competent authority which in the submission of the petitioner has to be by the regulatory Commission in terms of Section 23 of the Electricity Act, 2003.

It is further submitted that the case set up by the respondent that the petitioner is being supplied electricity from an independent feeder is also incorrect and that the supply is not from an independent feeder as defined under the code.

After the arguments were heard at length and the affidavits were perused, we find that the question now stands narrowed down to the issue as to whether the petitioner is liable to pay additional charges for protective load even in the absence of scheduled rostering. The question is as to whether the respondents have been able to establish that there is a valid order by the competent authority of scheduled rostering or not. In the absence of any specific indication in the counter affidavit of the respondents, it would be appropriate that the regulatory commission represented by Sri A.N. Singh Advocate as well as Sri Mehboob Ahmad for the respondent nos. 3 to 5 may file an appropriate affidavit specifying as to under what authority of law has scheduled rostering been carried out if at all for the duration and the period for which the impugned additional charges are sought to be recovered from the petitioner. The affidavit shall specify the facts coupled with any document in this regard.

They will also specify as to whether the contention raised by the learned counsel for the respondents that optimum scheduling also amounts to scheduled rostering as referred to in Section 32 of the 2003 Act is correct or not and if so, then on what basis.

On the request of the learned counsel, let the matter come up in the ***next cause list***.

Order Date :- 23.5.2018
S.Chaurasia

Court No. - 40

Case :- WRIT - C No. - 26512 of 2016

Petitioner :- M/S Ranjeeta Cold Storage & Ice Plant

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Amrendra Nath Singh,Mahboob Ahmad

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Sri Mahboob Ahmad, learned counsel for the respondents has sent his illness slip today.

List in the next cause list.

Order Date :- 30.5.2018

A. Verma

Court No. - 38

Case :- WRIT - C No. - 26512 of 2016

Petitioner :- M/S Ranjeeta Cold Storage & Ice Plant

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Amrendra Nath Singh,Mahboob Ahmad

Hon'ble Abhinava Upadhya,J.

Hon'ble Shashi Kant,J.

Passed over on the illness slip of Sri Mahboob Ahmad, learned counsel appearing for the respondent. Sri B.C. Rai, learned counsel for the petitioner is present.

List in the next cause list.

Order Date :- 5.7.2018

A. Pt. Singh

(Shashi Kant,J.) (Abhinava Upadhya,J.)

Court No. - 38

Case :- WRIT - C No. - 26512 of 2016

Petitioner :- M/S Ranjeeta Cold Storage & Ice Plant

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Amrendra Nath Singh,Mahboob Ahmad

Hon'ble Abhinava Upadhyay,J.

Hon'ble Shashi Kant,J.

Case is passed over for the day on the request made by Sri Mahboob Ahmad, learned counsel appearing for respondents.

List in the next cause list.

Order Date :- 12.7.2018

A. Verma

(Shashi Kant, J.)

(Abhinava Upadhyay, J.)

Court No. - 21

Case :- WRIT - C No. - 26512 of 2016

Petitioner :- M/S Ranjeeta Cold Storage And Ice Plant

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Amrendra Nath Singh,Mahboob Ahmad

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Sri Udit Chandra, learned counsel appearing on behalf of the respondent-Electricity Department is granted three weeks' further time to clarify the issues flagged by the Court in its order dated 23.5.2018 by filing affidavit of a responsible officer.

List on 24.04.2023 alongwith Writ-C Nos.26681 of 2016, 26508 of 2016, 25077 of 2016, 24419 of 2016, 24465 of 2016, 25080 of 2016, 25084 of 2016 25088 of 2016, 27249 of 2016, 26514 of 2016 and 25090 of 2016.

When the case is listed next, name of Sri Udit Chandra shall be shown as counsel for respondents.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 24.3.2023

SL

Court No. - 21

Case :- WRIT - C No. - 26512 of 2016

Petitioner :- M/S Ranjeeta Cold Storage And Ice Plant

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Amrendra Nath
Singh,Mahboob Ahmad

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

There is a request for adjournment on behalf of Sri Syed Safdar Ali
Kazmi, counsel for the respondent Commission.

List on 4.07.2023 showing his name as one of the counsel for the
respondents.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 8.5.2023

SL

Court No. - 40

Case :- WRIT - C No. - 26512 of 2016

Petitioner :- M/S Ranjeeta Cold Storage And Ice Plant

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Amrendra Nath Singh,Mahboob Ahmad

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Sri Ajay Singh, learned counsel appearing on behalf of respondent no.2-Uttar Pradesh Regulatory Commission, Lucknow and Sri Syed Safdar Ali Kazmi, counsel for the respondent-Commission pray for and are accorded two weeks' and no more time to comply with the order dated 23.05.2018. One week is accorded to the petitioner to file rejoinder affidavit to the said affidavit.

2. List on 1st August, 2023 along with Writ C Nos. 49532 of 2016, 40487 of 2019 and 26702 of 2018 showing the name of Sri Ajay Singh (A/A 2117/13) as counsel for the respondent no.2.

Order Date :- 4.7.2023

Noman